



INDIAN LAW & DEALMAKING · 30 SEPTEMBER 2026

Five moves shaping the board now.

- › ED raids Kolkata promoter over IBC proxy re-acquisition
- › SEBI clears Vinod Adani as Adani entities settle for ₹1.48 crore
- › NCLAT issues notice on Subhash Chandra personal insolvency challenge
- › Supreme Court rules compromise decree without necessary party is a nullity
- › SEBI closes fit and proper probe into Embassy REIT promoters

SWIPE →



ENFORCEMENT · ED

01 / 05

ED searches Kolkata premises over IBC asset re-acquisition fraud

On 30 September 2026, the Enforcement Directorate searched 12 premises in Kolkata targeting Tayal Group promoters in an ₹820 crore bank loan fraud. The probe focuses on allegations that the promoters used proxy fronts to systematically re-acquire assets through the insolvency process after receiving adverse remarks at the NCLT.

THE READ

Corporate debtors using front entities to regain distress assets risk criminal money laundering proceedings alongside IBC disqualifications. Boards and resolution professionals must tighten diligence on resolution applicants to prevent circular promoter buybacks.



SEBI clears Vinod Adani and accepts Adani settlement

On 29 September 2026, SEBI cleared Vinod Adani in a Minimum Public Shareholding compliance investigation regarding offshore entity control. Simultaneously, Gautam Adani and four Adani Group entities settled related disclosure proceedings by paying a ₹1.48 crore settlement fee without admitting or denying guilt.

THE READ

The closure of regulatory proceedings removes a major overhang regarding promoter shareholding structures for the conglomerate. The settlement route underscores SEBI's growing reliance on monetary settlements to resolve complex disclosure disputes efficiently.



NCLAT issues notice on Subhash Chandra personal insolvency order

On 29 September 2026, the NCLAT issued notices to financial creditors on an appeal filed by Essel Group Chairman Subhash Chandra. Chandra challenged a September 1 order of a five-member NCLT bench that stayed an order approving his personal insolvency plan covering ₹22,006 crore in personal guarantees.

THE READ

Personal insolvency resolution jurisprudence remains volatile as appellate tribunals grapple with larger bench rulings staying approved debt haircuts. Creditors face continued execution delays while individual guarantors test the boundaries of debt discharge under the insolvency framework.



COMMERCIAL · SUPREME COURT

04 / 05

Supreme Court invalidates compromise decree passed without necessary parties

On 30 September 2026, the Supreme Court held in *Geeta Bai v. K. Arjun Singh* that a civil suit compromise decree passed without impleading a necessary party is a complete nullity. The court ruled that affected non-parties are fully entitled to file a recall application directly before the court that issued the consent decree.

THE READ

Litigants cannot rely on consent terms to bind or prejudice third-party commercial rights behind closed doors. Dealmakers and litigators must ensure all interested stakeholders are joined before finalizing judicial settlements to prevent subsequent nullification.



REGULATORY · HIGH COURT

05 / 05

SEBI closes promoter fit and proper probe into Embassy REIT

On 30 September 2026, SEBI informed the Bombay High Court via affidavit that its examination into the fit and proper status of Embassy Office Parks REIT promoters was closed. The regulator confirmed that the available material did not warrant disqualification under the amended April 2026 framework.

THE READ

Regulatory closure provides stability to institutional investors in public real estate investment trusts. The application of updated fit and proper standards clarifies the threshold required to trigger promoter disqualifications in listed yield vehicles.



THE THROUGH-LINE

Across enforcement, securities, insolvency, and civil procedure, Indian regulatory and judicial forums are rigorously defining the boundaries of promoter accountability and process integrity. Whether policing proxy asset re-acquisitions under the IBC, scrutinizing personal guarantee haircuts, or enforcing third-party rights in court settlements, authorities are insisting on strict compliance over procedural circumvention. Strategic dealmakers must ensure that corporate actions withstand multi-forum scrutiny across both statutory frameworks and common law principles.





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